

TENTATIVE RULING FOR September 16, 2026

Department S22 – Judge David Driscoll

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You must appear at the hearing if you are so directed by the court in the tentative ruling. Be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVDS1936791

JOSE MEJIA CASTELLON v. GARY SCOTT ACKERMAN, ET AL

TENTATIVE RULING

This consolidated litigation arises from a vehicle accident. On December 4, 2019, Plaintiff Jose Mejia Castellon filed his Complaint against Defendants Gary Scott Ackerman (Ackerman) and Suzanne Ackerman (Suzanne). The Complaint pleads two causes of action: (1) negligence and (2) motor vehicle. Also on December 4, 2019, Plaintiff Cristian Alfaro filed his Complaint against Ackerman and later dismissed party (Suzanne) [CIVDS1936792]. Alfaro's Complaint pleads two causes of action: (1) motor vehicle and (2) negligence.

On April 6, 2023, Plaintiffs Daniela Fuentes, Stephanie Viera, and Victor Viera (minor through guardian ad litem Angelica Medrano) filed their Complaint against Defendants Ackerman and Thermodyne International, Ltd. [CIVSB2308491]. Their operative First Amended Complaint pleads two causes of action: (1) negligence, and (2) wrongful death. Defendants Ackerman and Thermodyne answered.

These consolidated litigations are predicated upon an accident occurring on December 4, 2017, on State Route 138, near Pine Tree Rd. On that day, Ackerman was driving westbound while intoxicated. He fell asleep, resulting his veering into the dirt shoulder, hitting the paddle marker, turning to the left, entering the opposite lane, and colliding with the vehicle driven by Castellon with passengers Alfaro, and Delmy Mejia Viera (Decedent). Plaintiffs Alfaro, Fuentes, Stephanie, and Victor are the deceased's children.

Plaintiff Alfaro moved to amend his Complaint to add punitive damages allegations against Defendant Ackerman and to add Thermodyne International, Ltd. as the employer of Ackerman, and thereby, liable under a respondeat superior/vicarious liability for his negligent driving. Defendant Thermodyne opposed. Plaintiff Alfaro replied.

On June 2, 2026, the Court granted the request to file an amended complaint to plead punitive damages. After a short continuance, in July 1, 2026, the Court granted Plaintiff Alfaro motion to amended to add Thermodyne. Defendants answered.

Defendant Ackerman moves to strike Plaintiff Alfaro's allegations and prayer for punitive damages. Plaintiff Alfaro opposes. Defendant Ackerman filed a reply.

Code of Civil Procedure section 436, subdivision (a) states that matters that are "irrelevant, false or improper" are subject to a motion to strike. "Irrelevant" means any immaterial allegation in the complaint. Code of Civil Procedure section 431.10, subdivision (b) defines an immaterial allegation as any of the following:

- (1) An allegation that is not essential to the statement of a claim or defense.
- (2) An allegation that is neither pertinent to nor supported by an otherwise sufficient claim or defense.
- (3) A demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint.

Additionally, all or part of a pleading that is not drawn or filed in conformity with the laws of this state, a court rule, or order of the court may be stricken. (Code Civ. Proc., § 436, subd. (b).)

The grounds to strike shall appear either on the face of the challenged pleading or from matters that are judicially noticed. (Code Civ. Proc., § 437.) Additionally, the court reads the allegations as a whole, with all parts in their context, and assumes their truth. (*Spielholz v. Superior Court* (2001) 86 Cal.App.4th 1366, 1371; *Clauson v. Superior Court* (1989) 67 Cal.App.4th 1253, 1255.)

Analysis:

Defendant Ackerman seeks to strike Plaintiff Alfaro's prayer for punitive and exemplary damages (FAC, p. 8, ¶ 7) as well as paragraphs 12, 15, 25, 35, 43, 45-47 containing allegations for punitive and exemplary damages. Defendant Ackerman argues that the FAC fails to meet the pleading burden for punitive damages.

Plaintiff Alfaro opposes, asserting that Defendant Ackerman does not address paragraphs 14, 41, 42, or 44. Paragraph 42 alleges, as a direct factual allegation, that Defendant Ackerman voluntarily consumed alcoholic beverages and thereafter chose to operate a motor vehicle on a public roadway. Paragraph 14 alleges, again directly and not on information and belief, that hospital toxicology records generated on December 4, 2017, reflect an ethanol level of approximately 0.113 g/dL. Paragraph 44 alleges the criminal prosecution and guilty plea. Paragraph 41 expressly incorporates all of them into the FAC's punitive damages allegations.

Plaintiff Alfaro maintains that under the controlling authority Defendant Ackerman himself relies upon, that combination, voluntary intoxication followed by a knowing decision to drive, is by itself sufficient to support a finding of conscious disregard for the safety of others. (*Taylor v. Superior Court* (1979) 24 Cal.3d 890, 897 (Taylor).) Plaintiff Alfaro argues that even granted in full, the motion would leave the punitive damages claim standing on allegations Defendant Ackerman has never challenged.

Plaintiff Alfaro also argues that the motion overreaches. Alfaro asserts that five of the ten items Defendant Ackerman asks this Court to strike are not punitive damages allegations at all. Plaintiff contends that paragraphs 12, 13, and 15 appear in the FAC's general allegations, which are incorporated into both causes of action. Further paragraph 25 appears inside the first cause of action for motor vehicle negligence, and paragraph 35 appears inside the second cause of action for general negligence. Paragraph 25 alleges careless and inattentive operation, failure to maintain control, failure to keep a proper lookout, and unreasonable speed. Those are negligence allegations, and they stand whether or not any prayer for punitive damages remains in the case.

A party may obtain punitive damages where he/she proves by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice:

- (1) "Malice" means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.
- (2) "Oppression" means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.
- (3) "Fraud" means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury. (Civ. Code, § 3294, subs. (a) & (c).)

In a motion to strike punitive damage allegations, the "ultimate facts showing entitlement to such relief must be pled by the Plaintiff." (*Clauson, supra*, 67 Cal.App.4th at p. 1255.) Facts of oppression, fraud, or malice must be alleged. (*Grieves v. Superior Court (Fox)* (1984) 157 Cal.App.3d 159, 166.) The necessary facts can be stated as ultimate facts or conclusions of law, as long as they are read in context with the other facts alleged as to the defendant's conduct to "adequately plead the evil motive requisite to recover [] ... punitive damages." (*Monge v. Superior Court (Crown Gibraltar Graphic Center, Inc.)* (1986) 176 Cal.App.3d 503, 510.)

The general rule of thumb is negligence, even if gross or reckless, cannot justify punitive damages. (*Lee v. Bank of America* (1990) 218 Cal.App.3d 914, 920.)

Both parties raise the following four cases that discuss punitive damages in drunk driving accident cases.

In 1979, the California Supreme Court found when the defendant is aware of the probable dangerous consequences of his conduct, and that he willfully and deliberately failed to avoid those consequences then punitive damages are appropriate. (*Taylor, supra*, 24 Cal.3d at pp. 895-896.) In *Taylor*, the defendant was convicted of drunk driving on numerous occasions and had caused an automobile accident while driving under the influence. (*Id.* at p. 893.) The Court stated, "One who willfully consumes alcoholic beverages to the point of intoxication, knowing that he thereafter must operate a motor vehicle, thereby combining sharply impaired physical and mental faculties with a vehicle capable of great force and speed, reasonably may be held to exhibit a conscious disregard of the safety of others." (*Id.* at p. 897.)

In *Peterson v. Superior Court (Thompson)* (1982) 31 Cal.3d 147, 162 (*Peterson*), the

Supreme Court upheld punitive damages in a drunk driving context where the allegations showed, after consuming alcohol, the defendant drove with the plaintiff in the vehicle at speeds exceeding 100 mph and the plaintiff objected to the speed following by the defendant consuming more alcohol at a restaurant and then returning to the car to drive over 75 mph. The *Peterson* Court reiterated the *Taylor* conclusion that punitive may be awarded in a nonintentional tort claim where the conduct involved constitutes conscious

disregard of the rights or safety of others. (*Id.* at p. 158.) The plaintiff must establish the defendant intentionally performed an act knowing or should have known it was highly probable harm would result. (*Id.*)

Next, in *Dawes v. Superior Court (Mardian Jr.)* (1980) 111 Cal.App.3d 82, 85-87, 92 (*Dawes*), the Court of Appeal vacated the trial court's order striking allegations of the complaint that the driver while intoxicated ran a stop sign, zigzagged in and out of traffic, and drove over 65 mph in a 35-mph zone, all with reckless disregard of the probable consequences of said conduct and with reckless disregard of the safety of others. These facts were held sufficient to establish the defendant's conscious disregard for the safety of others and that the probability of injury to others could reasonably be inferred. (*Id.* at p. 90.) However, the *Dawes* Court notes a distinction between reckless driving and ordinary drunk driving, i.e., it does not agree that the risk created generally by one who becomes intoxicated and drives is the same as the risk created by an intoxicated driver's decision to "zigzag in and out of traffic at 65 miles per hour in a crowded beach recreation area at 1:30 in the afternoon on a Sunday in June. The risk of injury to others from ordinary driving while intoxicated is certainly foreseeable, but it is not necessarily probable. The risk of injury to others from Defendant's conduct under the circumstances alleged was probable." (*Id.* at p. 89.)

Lastly, in *Busboom v. Superior Court (Keller)* (1980) 113 Cal.App.3d 550, 555 (*Busboom*), the Court of Appeal upheld the plaintiff seeking punitive damages against a drunk driver defendant where the allegations included the defendant was drunk, driving southbound in the northbound lane of the highway, and aware of the safety hazard he created and probable dangerous consequences of his conduct.

But, since *Taylor, Peterson, Dawes*, and *Busboom*, Civil Code section 3294 has been amended to heighten the standard for punitive damage recovery. In 1987, the Legislature required despicable conduct for malice and oppression and increased the burden of proof to clear and convincing evidence. (*Lackner v. North* (2006) 135 Cal.App.4th 1188, 1211-12.) The Supreme Court states:

[T]he statute's reference to "despicable" conduct seems to represent a new substantive limitation on punitive damages awards. Used in its ordinary sense, the adjective "despicable" is a powerful term that refers to circumstances that are "base," "vile," or "contemptible." As amended to include this word, the statute plainly indicates that absent an intent to injure the plaintiff, "malice" requires more than a "willful and conscious" disregard of the plaintiffs' interests. The additional component of "despicable conduct" must be found. (*College Hospital Inc. v. Superior Court (Crowell)* (1994) 8 Cal.4th 704, 725.)

Punitive damages are imposed "for the sake of example and by way of punishing the defendant" thereby they typically are awarded for intentional torts such as assault and battery, IIED, nuisance, fraud, trespass, and product liability. (*Lackner v. North, supra*, 135 Cal.App.4th at p. 1212.) Nevertheless, punitive damages can be imposed in unintentional tort cases, but in such cases, the courts need to consider various factors in determining if the defendant's conduct is despicable. (*Ibid.*; *CRST, Inc. v. Superior Court (Lenning)* (2017) 11 Cal.App.5th 1255, 1261.)

From the above law, although punitive damages may be sought associated with a vehicle accident arising out of the defendant being drunk, despicable conduct must be pled to support the chance to recover punitive damages in the negligence claim. Here, Plaintiff Alfaro alleges that on December 4, 2017, at approximately 12:30 p.m., he was lawfully riding as a passenger in a motor vehicle traveling on State Route 138 in the County of San Bernardino. (FAC ¶ 9.) Defendant Ackerman, operating another vehicle on the same roadway, negligently and carelessly operated his vehicle so as to cause it to collide with the vehicle in which Plaintiff was riding. (FAC ¶ 10.) Plaintiff Alfaro sustained serious bodily injuries and

emotional distress, and Plaintiff Alfaro's mother, Delmy Mejia Viera, who was also an occupant of the vehicle, sustained fatal injuries. (FAC ¶ 11.)

Here, the above allegations are deficient to support despicable conduct.

TENTATIVE RULING

Defendant Ackerman's motion to strike Plaintiff Alfaro's prayer for punitive and exemplary damages (FAC, p. 8, ¶ 7) as well as paragraphs 43 and 45-47 containing allegations for punitive and exemplary damages is granted with 20 days leave to amend.